

Rajveer Sharma v. State of U.P. — arrears recovery; writ dismissed

Allahabad High Court · Division Bench · 14 May 2012 · WRIT - C No. - 23469 of 2012 · **Writ dismissed; bill dispute relegated to clause 6.5.**

HEADNOTE

Electricity bills must be paid as they become due under the U.P. Electricity Supply Code, 2005. A consumer who still disputes a bill may approach the Executive Engineer under clause 6.5 or the Electricity Consumers Redressal Forum. A writ seeking instalments or stalling arrears recovery, without any paid bill or representation on record, is not entertained.

FACTUAL SUMMARY

Rajveer Sharma, who ran a welding shop, was faced with recovery of Rs 60,614 as arrears of electricity dues which he had not paid. He alleged that the meter had faults that were not corrected in time, and offered to pay if the High Court fixed easy instalments. He had not placed on record any bill he had paid, nor any representation seeking correction of the meter. Counsel for respondent nos. 4 and 5, the distribution licensee, appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

Electricity bills are to be paid as soon as they become due on the date fixed under the U.P. Electricity Supply Code, 2005. If the consumer still disputes the bill, it is open to approach the Executive Engineer under clause 6.5, or the Electricity Consumers Redressal Forum; a writ for instalments or to stall recovery, without any representation or paid bill on record, is dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER WAS DEFECTIVE AND WHETHER THE ARREARS OF RS 60,614 WERE CORRECTLY ASSESSED

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